

Backlash to Climate Policy

James J. Patterson*

Abstract

Hard climate policy (e.g., regulation, taxes/pricing, phaseouts) is needed to meet ambitious climate targets, but when such policy is introduced, it can sometimes trigger backlash. Backlash involves an abrupt and forceful negative reaction by a significant number of actors seeking to reverse a policy, often through extraordinary means that transgress established procedures and norms. Yet, explanations of policy backlash remain nascent and fragmented. I synthesize insights from within and beyond climate politics to argue that contested legitimacy is central to climate policy backlash, which provokes attempts toward delegitimation. I develop a conceptual pathway to explain the occurrence of climate policy backlash and generate hypotheses about how practices of delegitimation occur, and their effects. This contributes to explaining why backlash occurs, highlighting ideational factors alongside interests and institutions. Overall, I suggest the need for a contextually embedded approach to understanding the volatile dynamics of backlash, bringing political sociology into conversation with political economy.

Hard climate policy (e.g., regulation, taxes/pricing, industry phaseouts) is needed to meet ambitious climate targets and stimulate rapid decarbonization, but when such policy is introduced, it can sometimes trigger backlash. Backlash can lead to policy regression and cast doubt on the prospects for future action. **Examples include the acrimonious removal of a national carbon pricing scheme in Australia in 2014 (Crowley 2017); the repeal of subnational climate policy in Alberta and Ontario in Canada in 2018–2019 (Macneil 2020; Raymond 2020); and the Yellow Vests protests in France in 2018–2019, linked to a fuel tax change (Kinniburgh 2019).** These experiences raise questions about when and why climate policy may be rejected by policy recipients and how that outcome can be avoided.

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Backlash refers to an abrupt and forceful negative reaction by a significant number of actors within a political community seeking to reverse a political development (Alter and Zürn 2020; Madsen et al. 2018; Patashnik 2019).¹ In other words, it is a volatile and largely unexpected pushback that can involve various actors (e.g., mass publics, political elites, organized interests). Policy backlash is an aspect of enactment politics² broadly conceived (Hacker and Pierson 2019), which centers on counteraction to policy action. It challenges policy substance and threatens the authority of policy proponents, transgressing routine procedures and norms of opposition (Alter and Zürn 2020; Madsen et al. 2018; Patashnik 2019). For example, while disagreement over policy is entirely normal, it is typically expressed through broadly shared procedures and norms of democratic decision-making within an accepted framework of public authority.³ Backlash, on the other hand, contests the very legitimacy of policy action, involving particularly strong and volatile grievances. Importantly, as a counter-action, backlash is an event or process rather than an outcome. It is therefore not synonymous with policy reversal per se, even though policy reversal or other negative consequences for policy stability and development can result.

Policy backlash has been observed in a range of domains, including climate change. However, explanations of the phenomenon remain nascent and fragmented. Emerging scholarship on backlash politics proceeds along varying lines, proposing explanations such as escalating negative feedback (Patashnik 2019) or contentious politics (Alter and Zürn 2020). Within climate politics, scholars have explored diverse forms of contestation in climate policy making to explain patterns of action/nonaction. For example, some have emphasized the material drivers of countermobilization to climate policy proposals within institutional politics (Mildenberger 2020; Skocpol 2013). Others have studied retrospective voting (Stokes 2016) or social mobilization (McAdam and Boudet 2012) in response to infrastructure siting. Still others have warned about the possibility of backlash to regulatory climate policy (Jordan and Matt 2014) and have explored right-wing populist opposition to climate action (Lockwood 2018). But so far, these lines of thinking remain disparate, lacking a shared grounding on which to study and compare varied manifestations of policy backlash.

In this article, I synthesize insights from within and beyond climate politics to argue that contested legitimacy is central to climate policy backlash. While there are antecedents to this idea within current literature (Alter and Zürn 2020; Madsen et al. 2018; Patashnik 2019), the role of contested

1. For example, Patashnik (2019, 50) describes this as like “slamming on the brakes” of a policy.
2. By this, I refer to the politics of policy introduction, including policy adoption and establishment.
3. For example, “a person might think that a law or a decision is misguided, or inequitable, or even unjust, but still accept it as legitimate—for example, on the ground that it was duly enacted by a democratically-elected legislature” (Bodansky 1999, 602).

legitimacy has so far not been foregrounded or elaborated. Yet, doing so helps to bring together material and interpretive drivers of counteraction, with moral judgments made by involved actors that give backlash particular escalatory force and volatility. Hence, contested legitimacy can help to explain why backlash occurs and often carries profound threat to its targets. Furthermore, I argue that this leads challengers to attempt to *delegitimize* a policy action in response. Contested legitimacy arises because a hard policy will, implicitly or explicitly, implement a new authoritative relation between the state and policy recipients, which must be widely accepted as legitimate to become normalized and durable. But such action may be opposed, either due to disagreement about the policy while accepting the right of the state to take such action (“ordinary opposition”) or due to more fundamental contestation over the very legitimacy of the state to take such action at all. This latter case gives rise to grievance, which can drive backlash.

The article proceeds as follows. First, I survey the difficult enactment politics of climate action and the issue of counteraction. Second, I combine insights about backlash politics to develop a conceptual pathway of climate policy backlash. Third, I examine the central role of contested legitimacy and how it triggers attempts at delegitimation that animate backlash, then distill a range of hypotheses to guide future empirical study. Thereby, the article has a hypothesis-generating focus; it contributes to explaining why climate policy backlash occurs, suggesting an ultimately ideational approach, which also has potential wider relevance beyond climate politics.

Counteraction to Climate Policy

Enactment of domestic climate policy involves many challenges. At the outset, policy must grapple with dilemmas that defy simple resolution, such as asymmetric distributions of costs and benefits for different actors and over time, and disagreement over the priority of climate action and willingness to take on costs (Bernauer 2013; Jordan et al. 2010). Preferences for climate action can be ambiguous and unstable. Aggregate stated preferences might not guarantee support for specific policies when they are introduced as costs become salient or opponents mobilize against a policy. Preferences can also cut across left–right political cleavages, fragmenting support among institutionalized actors (Mildenberger 2020). Climate policies also interact with wider policy and societal issues that may have higher public salience (Lipsy 2018, 4).

The attributes of specific climate policies also influence enactment. Scholars distinguish policy attributes such as instrument type, cost (level and distribution), and ambition (Mildenberger 2020; Sewerin et al. 2020). A key feature is the degree of coerciveness for policy recipients (Jordan and Matt 2014; Rhodes et al. 2017). Hard climate policy seeks to compel a particular action or behavior backed by threat of sanction or force (Schulze 2021). This could include paying certain taxes/charges, changing behavior in some way,

or stopping certain forms of economic activity. Such policy is “especially challenging politically” (Harrison and Sundstrom 2010, 8) because it involves the politics of distributing costs rather than benefits (Jordan and Matt 2014), and coerciveness may create risks for political legitimacy (Salamon 2001, 1651).

Nevertheless, patterns of backlash to climate policy are confounding. On one hand, recent years have seen the nationwide Yellow Vests protests in France (Kinniburgh 2019), policy rollbacks in Australia (Crowley 2017), policy rollbacks and provincial government court challenges against national climate policy in some Canadian provinces (Macneil 2020; Raymond 2020), and rollbacks of environmental policy in the United States under the Trump administration (Mildenberger 2021). Even Germany, famous for its multidecadal energy transition, struggles with rapidly moving away from coal due to fear of triggering resistance (Brauers et al. 2020). On the other hand, the United Kingdom has had a relatively stable climate policy framework over time (Fankhauser et al. 2018), and several small European states have implemented durable climate policy (Andersen 2019). While backlash is increasingly mentioned by climate policy scholars in recent years, this is usually in passing or situated within wider explanations of policy variation rather than taking the form of specific explanations of backlash itself as a dependent variable.

Some scholars examine climate policy variation between countries and its development over time. An important focus is political systems and electoral institutions. These scholars argue that non-majoritarian systems shield politicians from discontent over specific policies more readily than majoritarian systems, allowing costs to be imposed on consumers (Lipsky 2018), and that corporatist intermediation between organized interests can generate durable commitment compared to adversarial majoritarian pluralist systems (Andersen 2019). Majoritarian adversarial systems can impose costs on both consumers and producers but are more susceptible to reversal (Finnegan 2022). Mildenberger (2020) also considers institutionalized representation, arguing that fossil fuel interests are represented by both business and labor in political decision-making, which can block climate policy from multiple angles.

Others examine the consequences of populism for climate policy, observing that right-wing populisms often (but not always) deny or downplay climate change (Hess and Renner 2019). Lockwood (2018) scrutinizes the reasons for right-wing opposition to climate action, arguing that ideological factors (e.g., illiberalism, antipathy toward elites) are more convincing than structural factors (e.g., job losses, economic marginalization), partly due to cross-class support for populists. In contrast to studies of climate policy variation and development, populism scholars examine challenges to elite forms of authority (e.g., representational, expert) by those advocating instead for popular authority. Moreover, studies of populism reveal the role of symbols and emotions motivating “raw” forms of political behavior (e.g., incivility, aggression), highlighting how counteraction can arise in ways that challenge institutionalized politics.

Recently, Aklin and Mildenerger (2020) argued for a distributional politics approach, where conflict over costs and benefits is central to counteraction. Experiences of climate policy backlash also highlight the need to jointly consider routine/institutionalized politics (e.g., representation, elections, interest groups) and nonroutine/noninstitutionalized politics (e.g., social movements, mobilization) in counteraction.⁴ This brings attention to both within-policy dynamics and wider relations between policy and its context. It also raises questions about grievance formation. Alongside costs and benefits, moral judgments about policy action among endogenous actors also drive political behavior.

Approaches to Policy Backlash

Backlash is of increasing interest in political research. It has been employed regarding issues of energy infrastructure (Stokes 2016), international courts (Madsen et al. 2018), social norms (Mansbridge and Shames 2008), tax policy (Wilensky 2002), and cultural shifts (Norris and Inglehart 2019). **Scholars of backlash politics argue that it reflects a distinct phenomenon that differs from ordinary forms of political opposition or disagreement (Alter and Zürn 2020; Madsen et al. 2018; Patashnik 2019). Ultimately, this distinction may be partly one of degree (backlash as a form of strong counteraction) and partly one of kind (involving distinct political dynamics). Yet, regarding the former, backlash needs clarification, and regarding the latter, it demands explanation beyond labeling.**

Current conceptualizations of backlash risk conflating different political dynamics in the name of parsimony by aggregating different phenomena (e.g., decisions, policies, regimes, cultural shifts). While there may be common features in the dynamics of backlash across triggers, it is prudent to be more specific. In other words, **backlash to what? Climate policy backlash concerns reactions to public policy. It involves an attempt to reverse a policy following its introduction, through an abrupt negative response that is relatively unexpected and that is forceful or threatening to policy proponents due to volatile and/or transgressive political behavior.** This allows empirical identification of policy backlash across cases and settings. It also suggests that both within-policy and extrapolicy factors are involved. Hence, two important lines of thinking to consider are policy feedback, which examines the consequences of policy on subsequent politics, and contentious politics, which examines how public contention arises.

Policy Feedback

Policy feedback is a prominent body of work at the intersection of historical institutionalism and policy studies examining how policy reshapes subsequent politics (Béland and Schlager 2019; Pierson 1993). Policy feedback scholars

4. This divide has been identified by both political scientists (Hacker and Pierson 2014, 650) and sociologists (McAdam and Tarrow 2010).

have long highlighted resource effects (e.g., benefits, incentives) and interpretive effects (e.g., information, meaning) on a range of actors, including political elites, organized groups, and mass publics (Béland and Schlager 2019; Pierson 1993). Climate politics draws on ideas about positive (policy-reinforcing) and negative (policy-undermining) feedback, which typically consider gradual feedbacks over years to decades. Jacobs and Weaver (2015) identify gradual endogenous sources of undermining feedback (i.e., unanticipated losses, strategic cultivation of grievance, presence of policy alternatives) that suggest ways that escalation might occur during backlash. Skogstad (2017), on the other hand, highlights exogenous sources of undermining feedback, such as shifts in wider political ideas and institutional contexts.

Policy feedback scholars have occasionally mentioned backlash (e.g., Hacker and Pierson 2014; Jordan and Matt 2014; Pierson 1993), but this notion remained undeveloped until Patashnik (2019, 48) proposed a view of policy backlash as rapidly escalating, or “an extreme case of,” negative feedback. His approach centers on countermobilization as a core feature and proposes various mechanisms of how this occurs and involving whom. This could include mass publics (i.e., people angered by perceived losses, by political elites who are perceived to overreach in their policy priorities, or by resentment from some social groups toward others), organized interests (i.e., discontent from withdrawn benefits), political elites (i.e., party differentiation), or broader erosion of support bases (i.e., self-undermining feedbacks) (Patashnik 2019). This approach illuminates a range of ways in which backlash might occur but leaves somewhat open the question of what is truly in common between them. It also identifies but does not elaborate on mobilization dynamics outside of routine politics.

Contentious Politics

Contentious politics is a prominent body of work in social movement studies examining collective challenges to formal political authority that emerge episodically outside of routine politics (McAdam et al. 2001). For example, this can include movements, strikes, and riots, the onset of which is contingent on both proximate and contextual factors (Barrie 2021; McAdam et al. 2001). Scholars have identified the possibility of backlash as counteraction to movements, such as repression (Amenta et al. 2010, 290), or as “reactive sequences” of reactions and counterreactions to an initial challenge (Tarrow 2022, 21). But, somewhat puzzlingly, there has been less emphasis on direct threat as a trigger of contention—a “suddenly imposed grievance” (McAdam et al. 2001, 310) as for policy backlash—rather than opportunity (e.g., expanding rights and recognition) (McAdam and Boudet 2012, 96). Social movement scholars are beginning to examine climate politics (e.g., McAdam and Boudet 2012), and vice versa (Neville 2021), but this is a relatively recent development.

Situated broadly within contentious politics, Alter and Zürn (2020) develop a specific approach to conceptualizing backlash politics as an

extraordinary form of contention. They argue that backlash involves three necessary conditions: an attempt to return to a prior situation, extraordinary forms of action, and salience within public discourse. They also argue that direct triggers only partially explain the occurrence of backlash, suggesting that grievance formation within a wider context is important.

Combined Insights

Understanding climate policy backlash requires combining insights from existing approaches within the domain of climate politics. **My focus is on hard climate policy at the level of a political community (rather than place-based siting controversies).** In this light, backlash is an abrupt counteraction (drawing on climate politics) involving strong negative feedback (drawing on policy feedback) that erupts in unconfined ways in response to grievance (drawing on contentious politics).

However, linkages between routine and nonroutine politics are underdeveloped (Barrie 2021; Hacker and Pierson 2014; McAdam and Tarrow 2010). **Backlash can originate among either mass publics or elites and organized groups and spill over between them.** For example, elites may attempt to mobilize contention into the public sphere (Mildenberger 2020), such as through political entrepreneurs raising the salience of losses to certain groups (Patashnik 2019). On the other hand, social movements can influence political elites through claim making during elections (Tarrow 2022), which may consolidate as persistent cleavages (Alter and Zürn 2020). Furthermore, media coverage is thought to be an important factor linking oppositional elites and mass publics (Béland and Schlager 2019, 201; Hacker and Pierson 2019, 17). Importantly, McAdam et al.'s (2001, 15) general caution against downplaying "the contingency, emotionality, plasticity, and interactive character of movement politics" is relevant. Backlash requires going beyond the policy-centered frame of much policy feedback research and the movement-centered frame of much contentious politics research to examine how these forces operate interactively within a context.

While mass publics are key actors in backlash, they are not uniform, nor are specific social groups necessarily identifiable prior to backlash. Mass publics develop subjective perceptions about policy. Policy feedback scholars have long been aware of the social construction of target groups through the gradual formation of social categories linked to policy benefits/harms (Béland and Schlager 2019). On the other hand, contentious politics scholars emphasize the "creation of new actors and identities through the very process of contention" (McAdam et al. 2001, 33). Indeed, a key element of the distinction between "routine" and "nonroutine" politics for them is whether actor identities are pre-established or "newly self-identified," respectively (McAdam et al. 2001, 8). This is relevant to backlash because new social groups may rapidly form around a perceived threat/grievance unforeseen by policy proponents (such

as the Yellow Vests movement in France forging an identity as a nonurban precariat).

But where does grievance—whether among mass publics or elites and organized groups—come from? As shown in the previous section, climate politics has rich insights on the material and institutional drivers of counteraction to climate policy, emphasizing strategic response to incentives/opportunities. **But importantly, people react not only to objective costs but also to the *perception* of costs (Patashnik 2019). For example, Mildenberger et al. (2022) find that perceptions of carbon pricing compensation can be skewed by political partisanship, leading to overestimation of cost burdens. This suggests that backlash is a function not only of material effects but also of perceptions.**

Scholars of policy feedback have also long highlighted interpretive effects of policy. This involves the information and meaning that policy conveys for different actors (Pierson 1993). For example, it can include the visibility of costs and beliefs about who is responsible (Pierson 1993) and how a policy is framed in relation to other issues of concern (Millar et al. 2021). Populism scholars highlight interpretive aspects differently when they observe symbolic meanings of climate policy in ideological terms (Lockwood 2018). Thus, material costs and benefits could sometimes take on magnified salience because of what they represent within wider political struggles. For example, Skocpol (2013) argues that creeping rightward shifts among republicans over decades drove backlash against domestic climate policy negotiations in the United States in 2009–2010.

Both material and interpretive sources of grievance are likely to be involved in climate policy backlash. But for backlash to take hold, grievance must also escalate or spread to create an abrupt and relatively unforeseen threat to policy proponents. Existing approaches to backlash insufficiently explain this key aspect, attributing it to rising waves of discontent (Patashnik 2019) or “companion accelerants,” such as “nostalgia, emotional appeals, [and] taboo breaking” (Alter and Zürn 2020, 563). But why such dynamics take hold remains opaque. Arguably, there must be a widely perceived grievance powerful enough to rapidly expand contention and spill over between actors.

The core grievance underpinning climate policy backlash is, I argue, contested legitimacy of a policy action. Indeed, scholars of backlash politics already point to contested legitimacy in their accounts but have done so largely in passing rather than making it central. For example, Alter and Zürn (2020, 567) link the extraordinary character of backlash to rejection of “broadly shared understandings of what is considered politically legitimate” in terms of acceptable responses, and Patashnik (2019, 51) identifies threat to “beliefs about the legitimate role and purposes of government” as one form of loss that can motivate responses by certain actors. Alter and Zürn (2020, 564) also observe that some contests can “escalate into existential disagreements” but leave somewhat open the reasons why this might occur. More broadly, Skogstad (2017, 24) observes that policies can have interpretive effects that influence actors’ views about what constitute “legitimate/illegitimate policies.” Policy feedback scholars also argue

that threats to identity can motivate reactions by certain actors (Hacker and Pierson 2019; Patashnik 2019; Skogstad 2017), although they often view this through the prism of endogenously formed identities linked to prior policy benefits. Alternatively, climate policy scholars have gestured toward a sense of basic fairness as central to adverse reactions to policy proposals (Bergquist et al. 2022), although this may signal legitimacy since it suggests a moral judgment about policy acceptability. Contested legitimacy, therefore, provides the fuel for backlash—its volatility, escalation, and unconfined scope spanning routine and nonroutine politics.

Conceptual Pathway

Figure 1 shows a conceptual pathway for the occurrence of backlash in climate policy. First, a policy is proposed or enacted, which leads to perceptions about its effects among different actors (e.g., political elites; organized groups; mass publics, including existing and as-yet unformed social groups). Actors also evaluate policy against shared beliefs about the rightful exercise of public authority. If the policy conflicts with these beliefs, it creates deep-seated grievance, which can (but might not) give rise to backlash. Other contextual contingencies may also be important for allowing grievance to coalesce and escalate (e.g., slow-building pressure, opportunity structures). But contested legitimacy is the crucial factor making backlash possible and translating perceived policy effects into volatile counteraction.

The effects of backlash can vary. Not only is policy substance at stake, but so is representative authority of policy proponents. Political competition may also be reshaped. Regarding policy substance, backlash need not involve reversal of the policy (Alter and Zürn 2020; Madsen et al. 2018). Immediate effects could include no change, modification, delay, or repeal/abandonment. But longer-term effects could include enduring damage to the legitimacy of a policy (McConnell 2011) or an entire policy agenda (Rosenbloom et al. 2019). The abrupt and forceful character of backlash threatens the representative authority of policy proponents (Alter and Zürn 2020; Hacker and Pierson 2019; Patashnik 2019). This could include reduced trust and mandate, as well as damage to “electoral prospects,” the “capacity to govern,” and “the direction

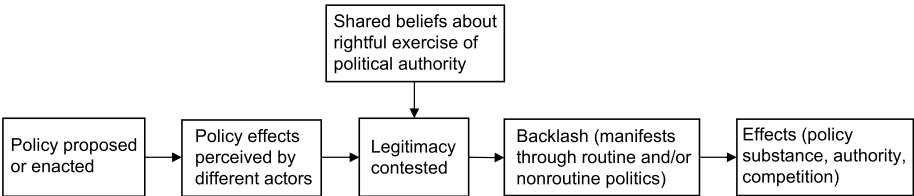


Figure 1
Proposed pathway for the Occurrence of Backlash to Climate Policy

of government" (McConnell 2011, 356). Regarding political competition, backlash can create cleavages (Alter and Zürn 2020) that lead to political realignments by "forc[ing] elites to reconsider their commitments and allegiances" (McAdam et al. 2001, 9). It can influence public opinion and voting behavior (Stokes 2016). It might also consolidate opposition among elites and organized groups (Lacombe 2022) by generating "fierce enemies ... and political clout for future battles" (Skocpol 2013).

The pathway in Figure 1 foregrounds contested legitimacy as a decisive element that, although certainly not absent, has remained underdeveloped in thinking about backlash politics so far. This offers a fuller view of why backlash arises in response to policy action. It also suggests why speed⁵ and scale⁶ of policy action may not be determinative of backlash—what matters is whether the legitimacy of a policy action is accepted or challenged.

Backlash and Contested Legitimacy

Contested legitimacy concerns acquiescence or non-acquiescence to the wielding of public authority over policy recipients. Hard climate policy imposes burdens or compulsory expectations, which can lead to perceptions of adverse effects. But such policy is also judged by actors in relation to shared beliefs in the political community about the rightful exercise of public authority. *Authority* refers to "the capacity to issue commands and take steps with a reasonable expectation that others will accept these actions as legitimate" (Pierson 1993, 598) and therefore involves "a claim on the part of those making it for deference or compliance" (Skogstad and Whyte 2015, 83). Hacker and Pierson (2014) remind us that "at its heart, politics is about the exercise of public authority" involving "the coercive power of the state to impose their preferences on losers through public policies" (648), and hence policy making can involve "significant exercises of public authority" (656). How exercises of public authority involved in hard climate policy are judged by policy recipients is pivotal to whether public authority is viewed as legitimate. Yet, since legitimacy arises in reference to "the scope of authority claimed" (Bernstein 2011, 21), incumbents do not have carte blanche for any desired policy; the wielding of public authority in a new way may be contested.

Legitimacy in a political sense involves "the acceptance and justification of shared rule by a community" (Bernstein 2005, 142), particularly concerning "governance and authority relationships" (Bernstein 2011, 19). Authoritative actions, such as those taken by a state, must be "acknowledged as rightful by those involved in a given power relation" to be legitimate (Beetham 2013, x), including among those within a political community who may disagree with

5. Alter and Zürn (2020, 573) reflect on the puzzling timing of backlash to sociopolitical developments.

6. Patashnik (2019) suggests policy overreach as one possible reason for backlash, but either "small" or "large" developments might trigger backlash.

policy substance but still accept the right of those in power to take such action (Black 2008; Bodansky 1999; Skogstad 2003). **Contested legitimacy** is, therefore, a serious and potentially destabilizing issue that goes beyond ordinary opposition, threatening policy enactment and entrenchment. Yet, the study of legitimacy remains underdeveloped in domestic climate politics (Purdon 2015).

Legitimacy can be considered in normative or sociological terms. Normative approaches are most common, analyzing empirical circumstances against external criteria specifying what “ought” to be required for legitimacy to be present (Black 2008; Tallberg et al. 2018). On the other hand, sociological legitimacy analyzes whether an action is deemed to be legitimate by endogenous actors themselves (Bernstein 2005; Black 2008; Tallberg et al. 2018). Hence, “the relationship between justifications and acceptability [becomes] ... a matter of investigation” (Bernstein 2011, 20). Sociological legitimacy is suited to studying climate policy backlash because it considers how actors themselves interpret policy action and decide whether to acquiesce. In other words, analysis is “internal to the social belief system in question, rather than based on an external criterion of validity” (Beetham 2013, xi).⁷

Importantly, the focus is not the *state* of legitimacy at a particular moment but, rather, the *processes* by which legitimacy is built (legitimation) or undermined (delegitimation). Legitimacy contestation involves the struggle over competing processes of legitimation and delegitimation (following Bäckstrand and Söderbaum 2018; Bernstein 2011). Hard policy must be legitimated when making new demands on actors but might also be vulnerable to delegitimation. For example, social movement scholars have observed that challengers and incumbents can legitimate/delegitimize actions and claims of a movement (McAdam et al. 2001, 311). In climate policy backlash, proponents exercise authority through a policy action, which other actors may attempt to delegitimize.

Evaluative Judgments

Evaluative judgments made by endogenous actors are the mechanism by which contested legitimacy arises. This concerns both perceived policy effects and the exercise of public authority through policy action (Figure 1). Perceived policy effects matter because evaluative judgments are not free of self-interest; interests inform moral reasoning about appropriate ways of achieving a certain payoff (Dellmuth and Schlipphak 2020, 933). Shared beliefs about the rightful use of public authority matter because actors evaluate political developments with reference to what they understand to be appropriate in the political community (Beetham 2013).

Perceived policy effects involve both interests and moral reasoning. Climate politics scholars highlight that resource effects of policy can influence

7. Thereby, sociological legitimacy avoids a normative stance, such as viewing backlash only as a conservative reactionary response.

counteraction. When such effects are perceived as morally unacceptable (e.g., magnitude, distribution), this could prompt criticism over legitimacy. While it may seem counterintuitive to combine interests and moral reasoning, scholars have suggested that sociological legitimacy arises from both a sense of rightfulness and interests (Black 2008; Dellmuth and Schlipphak 2020) or social desirability (Skogstad 2003). Beetham (2013, xiii) highlights that “ends or purposes” matter for endogenous actors alongside their normative reasoning. In climate politics, Skocpol (2013, 11) argues that policy reforms must “not appear inimical to the everyday values and economic concerns” of people, suggesting that policy effects inform evaluative judgments. But interests alone do not determine whether legitimacy is contested. “Loser’s consent”—the willingness of those on the losing side to accept political decisions as legitimate—is central to democratic stability (Rich and Treece 2018), and its absence could contribute to contested legitimacy. Agné (2018, 34) suggests that when institutions entail moral goals, “subjects may act morally and self-interestedly at the same time”—yet this is the rule rather than the exception for distributional problems such as climate change.

Shared beliefs about the rightful use of public authority within a political community constitute a broader yardstick for evaluative judgments. This may include shared beliefs about freedom (e.g., behavioral choices), liberty (e.g., free exchange, investment), egalitarianism (e.g., distribution of costs), or representation (e.g., procedural fairness). After all, legitimacy itself involves a sense of rightful action within a “socially constructed system of norms, values, beliefs, and definitions” (Suchman 1995, 574). Hence, “a given power relationship [or exercise of public authority] is not legitimate because people believe in its legitimacy, but because it can be justified in terms of their beliefs” (Beetham 2013, 11). Justifiability is therefore a key aspect of legitimacy, but so is legal validity concerning alignment with prevailing laws (Beetham 2013). For example, climate policy has been challenged in Australia in terms of its justifiability regarding norms of economic liberty and good governance (Crowley 2017) and in Canada regarding constitutional validity (Chalifour 2019).

Importantly, evaluative judgments will be heterogeneous due to diverse preferences, values, and worldviews (Black 2008, 145). Climate policy scholars have recognized social heterogeneity among policy recipients (Rhodes et al. 2017). Political scientists have observed that polarization entrenches cleavages (Hacker and Pierson 2019), which could also condition evaluative judgments. Hence, legitimacy is not conferred or contested homogenously. What matters for climate policy backlash is the degree to which a sense of contested legitimacy escalates to threaten policy proponents.

Delegitimation

But how does contested legitimacy come to threaten policy proponents? It does so through attempts to *delegitimize* the policy in question. This is the “lash” of

backlash, an action striking out in response to threat. Delegitimation refers to processes by which the authoritative status of an action or institution is undermined (Bäckstrand and Söderbaum 2018). Aggrieved actors form negative evaluative judgments of a policy, generating strong emotions that motivate them to attempt to delegitimize it. As a result, “extraordinary objectives often inspire taboo breaking to underscore the extraordinary nature of the claims” (Alter and Zürn 2020, 564). As backlash takes hold, processes of delegitimation overwhelm competing processes of legitimation; delegitimation attempts are not a threat if isolated, only if they escalate.

Delegitimation can occur through a variety of potentially linked practices. Studying global governance, Bäckstrand and Söderbaum (2018) categorize discursive (e.g., public criticism), institutional (e.g., defection), and behavioral (e.g., dissent) delegitimation practices. Similarly, but for domestic political regimes, Beetham (2013) identifies what could be broadly construed as delegitimation practices spanning legal congruence (e.g., rule conflict), justifiability (e.g., clash with shared beliefs), and consent (e.g., withdrawn consent). For policy, I combine these categories as argumentative (i.e., criticisms of policy considering wider shared beliefs), structural (i.e., conflict of policy with extant institutions), and behavioral (i.e., noncompliance or nonadoption) (Table 1). Importantly, a focus on practices differs to input/throughput/output legitimacy,⁸ stages that are likely to be difficult to separate empirically from the perspective of endogenous actors (also following Tallberg et al. 2018).

Argumentative delegitimation practices refers to claims about the unjustifiability of a policy considering shared beliefs of the political community. This may concern beliefs about how the society incarnates basic values (such as democracy, freedom, equality) and reconciles tensions between them, which provides a constitutive ideational fabric against which new policy action may be claimed to clash. For example, it might involve criticisms of fairness, as in the case of the Yellow Vests protests in France (Kinniburgh 2019). Importantly, argumentative practices are not about beliefs in legitimacy held by individual policy recipients but rather argumentation in reference to shared beliefs of the political community among various actors and observers (Beetham 2013). Such practices could be evidenced by the content of political rhetoric, media opinions, and protest messages (Bäckstrand and Söderbaum 2018) or other persuasive efforts (e.g., campaigns).

Structural delegitimation practices refers to attempts to substantiate a conflict between policy action and extant institutions (e.g., constitutions, laws). Such institutions may be portrayed as preeminent and worthy of prevailing in the face of a new policy that (potentially) transgresses them. For example, this could include legal or constitutional challenges, such as brought by some Canadian provinces against the national government in 2019–2021. The key question is

8. This typology is often applied normatively (e.g., Schmidt 2013), but this is not essential (Skogstad 2003). Yet, if applied sociologically, it raises the question of the basis for evaluative judgments made by endogenous actors.

Table 1
Delegitimation Practices in Policy Backlash

Category	Delegitimation Practices	
	Routine Politics	Nonroutine Politics
Argumentative	• Elite political rhetoric • Party manifestos/positions • Campaigns by interest groups • Media opinions	• Protest messages • Campaigns by social groups • Social media diffusion of ideas • Media opinions
Structural	• Court challenges by elites or interest groups • Legal challenge in legislative committees	• Court challenges by social groups
Behavioral	• Defection of officials • Withholding resources • Renouncing commitments • Voting of mass publics • Voting of political elites • Noncompliance by organized interests (e.g., industry, labor)	• Protests • Strikes, blockades • Riots • Property destruction • Disobedience/noncompliance • Spectacles/symbols of refusal

whether authority has been acquired or exercised in contravention of existing accepted rules (Beetham 2013) and, if so, we could add, whether the original rules should change. Such practices could be evidenced by court challenges to institutional validity by routine or nonroutine actors or other forms of legal challenge.

Behavioral delegitimation practices refer to actions of dissent or the withdrawal of consent for a policy action (Bäckstrand and Söderbaum 2018; Beetham 2013). This could involve various actors, routine (e.g., political elites, parties, interest groups) or nonroutine (e.g., mass publics, social groups). Practices could include protests, strikes, and blockades (Bäckstrand and Söderbaum 2018; Beetham 2013; McAdam et al. 2001), as well as disobedience/noncompliance or spectacles of refusal. But behavioral delegitimation practices can also occur within routine politics, such as defection of officials, withholding resources, renouncing commitments (Bäckstrand and Söderbaum 2018),⁹ voting behavior of mass publics and political representatives, and

9. Although the authors categorize these practices slightly differently.

noncooperation by organized interests (e.g., industry). Such behavior also typically seeks to influence perceptions of observers. However, the contribution of these practices to delegitimation needs to be empirically established and not assumed.

Hypotheses

Finally, drawing on the three categories of delegitimation practices, I develop initial hypotheses about climate policy backlash. These hypotheses map the three categories of delegitimation practices against key aspects of climate policy backlash—its manifestation (involving both eruption of grievance and escalation) and resulting political effects (Table 2). This can guide explanatory empirical analysis of backlash as an event/process rather than a snapshot.

Hypotheses H_{1A-D} examine the eruption of grievance. H_{1A} could elucidate the role of rhetoric in backlash, for example, as a means of channeling discontent. For example, Skocpol (2013) observed argumentative attacks on climate policy from multiple actors, with nonroutine actors seemingly playing an important role. H_{1B} , if upheld, could suggest that opportunity for legal challenge (e.g., as seen in Canada) is a condition that might be exploited by those seeking to cultivate backlash. H_{1C} could establish whether backlash mimics previous repertoires of contention or develops new ones.¹⁰ For example, is the salience of public protest in policy backlash proportional to the relative protest tendency of a society? Delegitimation practices may also interact concerning eruption of grievance. H_{1D} , focusing on the sequencing of delegitimation practices, could establish whether backlash events take on different trajectories depending on their starting points. For example, argumentative practices of elites may require mobilizing grievance into the public sphere (following Mildenerger 2020), but on the other hand, behavioral practices may be difficult to initiate, especially in nonroutine politics.

Hypotheses H_{2A-D} examine the escalation of grievance. H_{2A} examines the conditions for argumentative practices to take hold. For example, Lindvall (2017) suggests that in majoritarian systems, some actors may turn to nonroutine politics due to a lack of representation compared to proportional representation systems. Do political institutions influence argumentation of backlash? H_{2B} could establish the conditions under which structural practices, which could be seen as matters only of legal compliance, take on wider salience. In other words, when does a structural practice (e.g., strategic court challenge) stimulate grievance among other actors? H_{2C} could establish whether the number of behavioral practices grows during backlash and how they interact. For example, backlash to climate policy in Australia in 2012–2014 involved practices of elites interacting with those of mass publics (Crowley 2017).

10. Familiar forms of activity may lower coordination costs among participants and efficiently carry meaning to observers, increasing their chances of use.

Table 2
Initial Hypotheses About Climate Policy Backlash

<i>Aspect of Backlash</i>	<i>Hypotheses</i>
Eruption	H_{1A} Argumentative practices of delegitimation in nonroutine politics are most threatening to policy proponents because they introduce the greatest uncertainty about the extent of support for claims. H_{1B} Structural practices of delegitimation are equally likely to occur in pluralist and neocorporatist political systems because legal challenges in principle require only a small number of aggrieved actors. H_{1C} Behavioral practices of delegitimation occur within routine and nonroutine politics in ways that replicate previous forms of contention. H_{1D} Behavioral practices (e.g., public protests, elite defection) are more likely to lead to backlash than are argumentative practices alone because the latter require behavioral practices to consolidate argumentative claims.
Escalation	H_{2A} Argumentative practices of delegitimation are more likely to escalate/spread in antagonistic majoritarian political systems than in corporatist proportional representation systems. H_{2B} Structural practices of delegitimation gain greater support in polarized than in nonpolarized settings because an institutional challenge takes on symbolic rather than solely technical meaning to observers. H_{2C} Behavioral practices taken early will inspire others such that the number of behavioral practices grows during backlash. H_{2D} The diversity of delegitimation practices grows during a successful backlash by inspiring actors with agency in different venues.
Effects	H_{3A} Argumentative practices of delegitimation undermine the broader authority of policy proponents, who become seen as antithetical to the well-being of a political community. H_{3B} Structural practices of delegitimation differently affect policy proponents and challengers, with proponents harmed more by losses. H_{3C} The larger the variety and/or scale of behavioral delegitimation practices is, the more likely it is that a policy will be reversed. H_{3D} Argumentative and behavioral delegitimation practices have more enduring effects on political competition following backlash than do structural practices because the former carry moral weight, whereas the latter can be rationalized instrumentally.

Alternatively, the extent to which practices of mass publics are repressed may also be important for backlash trajectories. Delegitimation practices may also interact concerning escalation of grievance. H_{2D} could establish whether delegitimation practices have catalytic influence or whether different practices arise independently. If the former, then strategic cultivation of backlash in routine politics may be possible, whereas if the latter is found, then backlash may be inherently spontaneous.

Hypotheses H_{3A-D} examine the effects of backlash. H_{3A} could help to understand how policy proponents are impacted by backlash, for example, how they lose representative authority. H_{3B} could uncover whether structural practices have enduring and possibly asymmetric effects on political competition. For example, to what extent is trust in an incumbent harmed, and does a challenger gain support whether or not they prevail? H_{3C} could establish the conditions under which policy action, or a broader policy agenda, is reversed because of backlash. For example, was the success of backlash to climate policy in Australia in 2012–2014 and in Ontario in 2018–2019 due to the forms and scale of behavioral practices? Was a climate policy agenda derailed or just reshaped by the Yellow Vests protests in France in 2018–2019 due to the historically large scale of social mobilization? Delegitimation practices may also interact concerning political effects. H_{3D} could establish whether different delegitimation practices have different long-term effects. For example, would a constitutional challenge to climate policy (e.g., Canada) have similar effects on political competition as mass mobilization (e.g., France) or an acrimonious rhetorical portrayal of climate policy as antithetical to shared beliefs (e.g., Australia)?

Many other hypotheses could be developed involving factors such as initiating actors (e.g., elites, nonelites), opportunity structures (e.g., election cycles, party representation, veto points), the role of media, histories of contention over climate change, and cognate grievances (e.g., diffuse social tension). But while prior subthreshold tension may increase the potential for backlash, social movement scholars have argued that pressure alone is not enough to explain episodes of contention. Instead, we must identify the ways in which pressure is transformed into contentious struggle (McAdam et al. 2001, 306–307). Moreover, the criteria by which endogenous actors make evaluative judgments—“the broader normative and institutional environment that gives them meaning” (Bernstein 2018, 196)—can also evolve over time, shifting the reference points for delegitimation. As Bernstein suggests, delegitimation practices might affect the constitutive ideational setting itself.

Conclusions

This article began with the need to consider counteraction as a dependent variable in the politics of climate policy making, specifically, the issue of policy backlash, which is increasingly mentioned but understudied. I argue that policy

backlash is grounded in contested legitimacy and manifests through practices of delegitimation to provide a so-far lacking conceptual foundation for studying and comparing different cases, which also has potential relevance to other domains. This contributes to delineating and explaining backlash as a particular form of strong counteraction in climate politics, which is already noteworthy but may become a greater risk in coming years as hard policy becomes an increasingly necessary component of ambitious climate action. The hypotheses generated in this article can guide explanatory empirical analysis of climate policy backlash, which is currently lacking, crucially, treating backlash as an event or process rather than as a snapshot.

Viewing policy action as a trigger for counteraction reflects a policy-focused approach to politics (*sensu* Hacker and Pierson 2014). It also resonates with a relative gap in the contentious politics literature regarding response to sudden threat (McAdam and Boudet 2012). The issue of backlash, therefore, cuts across both routine and nonroutine politics, drawing together fields that are usually studied separately. The article also reflects a needed “problem-driven” approach to studying legitimacy (following Tallberg et al. 2018, 6), helping to elucidate the understudied issue of delegitimation in struggles over climate policy. More generally, the article encourages policy feedback scholars to give greater attention to volatile pushbacks, which have not typically been prominent in this literature, and encourages contentious politics scholars to consider counteraction to policy as a source of grievance for nonroutine action.

The central role of contested legitimacy suggests a partly ideational explanation for backlash rather than one centered on interests and institutions alone. While climate politics scholars have certainly given attention to interpretive effects of policy, this can sometimes remain “thin” concerning grievance formation. Contested legitimacy is different, as it profoundly shapes the moral meaning of policy action among policy recipients and observers. Interests and institutions remain central. But how policy recipients judge the rightfulness of policy is also crucial. Such meaning is formed within wider social and cultural contexts, suggesting a need for greater attention to the ways in which perceptions and meanings of climate policy are constructed among different groups within heterogeneous societies.

Altogether, this suggests the need for a contextual approach to understanding the politics of climate policy enactment. Backlash may not be easily predictable in advance, even though opposition from certain actors might be. Backlash requires not only that some actors attempt to delegitimize policy action but also that this escalates to create a broad-based threat to policy proponents. This involves complex relations with the constitutive ideational context, which remain understudied in domestic climate politics. Thereby, backlash foregrounds “connections between the social relations of human society and the institutional—and extra-institutional—dimensions of politics” (Barrie 2021, 921), in other words, political sociology alongside political economy.

James J. Patterson is an assistant professor in the Environmental Governance group of the Copernicus Institute of Sustainable Development, Utrecht University, the Netherlands. His research explores the political and institutional dynamics of climate action within the broader perspective of sustainability transformations. His work includes publications in journals such as *Nature Sustainability*, *Current Opinion in Environmental Sustainability*, and *Environmental Innovation and Societal Transitions* and a volume in the *Elements in Earth System Governance* series published by Cambridge University Press: *Remaking Political Institutions: Climate Change and Beyond*. He is also currently domain editor of the policy and governance section of *Wiley Interdisciplinary Reviews: Climate Change*.

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